

PARTNERSHIP DEED

(Company Name)

(Address)

This indenture of partnership made & entered on this (Start_date) by & between:-

- 1. Neha Kapoor** : **FATHER NAME - Sunil Kapoor**
ADDRESS - 6789, Lajpat Nagar, Delhi
DATE OF BIRTH - 1991-08-29
AGE – 33
PAN – (pan card number)
- 2. Neeraj Verma** : **FATEHR NAME - Suresh Verma**
ADDRESS - 5678, Gomti Nagar, Lucknow
DATE OF BIRTH – 1990-02-14
AGE – 34
PAN – (pan card number2)

Where as it has been mutually agreed by all the partners as mentioned above to enter into partnership and to carry on the business as **"Recovery agents to a banking company or a financial institution or a non-banking financial company"**

1. Whereas all the parties aforesaid agree to carry on the business in the partnership; and
2. Whereas the parties have also agreed to reduce the terms and conditions in the writing on which the business in the partnership is normally to be carried on:

Now therefore this deed witnessed that the partners here to have becomes partner to carry on the business on the following terms and

1. DATE OF COMMENCEMENT:-

The business is commenced on (Start_date)

2. NAME OF THE FIRM AND PLACE OF BUSINESS:-

The Partnership business shall be carried on under the name style of **(name_of_partner)**

Place of Business shall be at **(Address)** And/or at other places in India as may be decided mutually by the partners.

3. BUSINESS OF THE FIRM:-

That the Partnership Firm shall carry on the business as "**Recovery agents to a banking company or a financial institution or a non-banking financial company**" & Such other Business for partner mutually agree time to time there of and decided mutually by them.

4. CAPITAL CONTRIBUTION:-

Capital needed for the business shall be contributed by the partner as may be decided mutually. The parties shall contribute from time to time in **specific ratio ie. (3:1)** or as otherwise mutually agreed among them such amount by the way of capital as may be deemed necessary or expedient for effectively carrying on the business of the partnership firm.

Each of the partner shall entitled get interest @ not exceeding 12% P.A. on the amount of the capital standing to this credit in the account of the firm from time to time.

Partner shall introduce **Rs. (rupees)/- (In words)** capital at the commencement of the business i.e. on (Start_date). This capital is required to be contributed in pre determined ration i.e. (ratio).

5. TERMS OF REMUNERATION:-

It is agreed by the parties that they all will be the working partner of the firm. They agreed to devote their time and attention for the conduct of the affairs of the business of the partnership firm & they shall be draw the following amount by the way of remuneration from the partnership firm :-

It has been agreed by the parties here to that **Neha Kapoor AND Neeraj Verma** are working partners of the firm who are devoting their time & attention in the conduct of the affairs of firm as the circumstances and business needs may require shall be paid remuneration as mentioned below :-

Total Remuneration payable to working partners shall be minimum Rs (rupees) & maximum Rs (maximum_amount) for each accounting year computed as below:-

1. In case of loss or Book Profit : 90% of the book

- | | |
|---|---|
| not exceeding Rs (loss_rupees_case)/- for the year. | profit or Rs.(profit_rupees_case) /- whichever is more. |
|---|---|
2. On the amount of book profit : 60% of the book exceeding to Rs (profit_rupees_case)/- for profit. the year.

EXPLANATION

- a) For the purpose of this clause, the expression "Book Profit" shall mean the book profit as defined in Section 40 (b) of the Income-tax Act, 1961, or any statutory modification or reenactment thereof for the time being in force.
- b) The remuneration payable to the working partners as above shall be credited to their respective accounts on ascertainment of book profits.
- c) The total remuneration desired as per clause 5(a) shall be divided between partners in following ratio:-

<u>NAME</u>	<u>RATE</u>
1. Neha Kapoor	(ratio)
2. Neeraj Verma	(ratio)

That the partners shall be entitled to withdraw out of such remuneration for their personal needs from time to time basis or otherwise.

The partners may by mutual agreements modify the terms of remuneration / salary as stipulated above.

6. PROFIT SHARING RATIO:-

That the share of the parties here to in the profit or losses of the firm shall be as under:-

NAME	SHARE IN PROFIT & LOSS
1. Neha Kapoor	3/4
2. Neeraj Verma	1/4

7. LOANS BY/ TO PARTNER :-

That any advanced by or to the parties here to shall be paid interest at such rate as may be mutually decided by the parties hereto.

8. FINANCIAL YEAR:-

That the account of the firm shall be closed or adjusted at the end of the financial year every year and the profit or losses arising out of the business shall be divided between the parties hereto in the profit/ losses sharing ratio mentioned herein above.

9. COMMENCEMENT AND DURATION OF THE FIRM:-

That this partnership shall be deemed to be commenced as and from the date of this indenture and shall be deemed to continue from year to year unless dissolved by the parties hereto in writing or by the law. The partnership shall be "AT WILL".

10. RETIREMENT OF THE PARTNER:-

That any party hereto intending to retire from the month shall give one month notice of his intention to do so to the other party. In case of retirement of partner, the retiring partner will not carry on the same business as being carried out by the firm in the name of the or in the or in the resembling name of the firm.

11. BANK ACCOUNTS

The Bank account of the firm shall be open in the Bank or Banks as may be mutually decided shall be operated jointly or one of them or as may be mutually agreed.

12. BOOK OF ACCOUNTS:-

Proper Books of accounts shall be kept by the partners and all the books of accounts shall be kept at the place of business of the firm and all the partners shall have free access to them and shall be at liberty to inspect and copy the same.

13. DISSOLUTION OF THE FIRM:-

That notwithstanding anything contained in the Indian Partnership Act it is hereby mutually agreed to by and between the parties that in case of death of any one or more

partners, the firm shall not be dissolved but shall continue to be carried on by and between the surviving partners and legal heirs and/or representatives of the deceased partner, as a continuing concern, on the same terms and conditions as incorporated in this Deed or on such terms and conditions as may be agreed to by and between them from time to time. It is hereby further clarified that it shall be deemed as change in constitution and not succession.

14. ARBITRATION IN CASE OF DISPUTE :-

That in the event of any dispute or difference arising amongst the parties hereto the same shall be referred to arbitration of one or two or more persons to be appointed by the parties hereto and whose award shall be binding on the parties hereto and it will be an arbitration under the Indian Arbitration Act, 1940.

15. GOODWILL:-

It has been specifically agreed that no value of goodwill shall arise or deemed to have arisen on death or retirement any partners or on dissolution of the firm.

16. JURISDICTION:-

That jurisdiction for all civil/ local disputes related to this business shall be "INDORE".

17. PARTNERSHIP ACT:-

It is hereby provided that in any of the terms and conditions of this Partnership Deed is repugnant to the provision of the "Indian Partnership Act, 1932 " shall always prevailed.

18. POWER OF THE VARY TERMS:-

That any of the terms and conditions of this Partnership Deed can be altered / modified / varied / added / canceled at any time with mutual consent of the parties here of either expressed in writing or implied from conduct.

INWITNESSED WHERE OF. The parties have set their respective hands and seal on the day and year first wherein above mentioned.

19. FIRM BUSINESS EXTENTION / BRANCHES :-

The firm can expand its business or branches as mutually agreed by both the partners from time to time.

WITNESS :

SIGNATURE OF THE PARTNERS :

1.

NAME

ADDRESS

1.

Neha Kapoor

2.

NAME

ADDRESS

2.

Neeraj Verma